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6 **IN THE COURT OF APPEALS OF THE STATE OF OREGON**

7 ANNIKA ERIKSSON,

8 Appellant,

9 v.

10 THE BANK OF NEW YORK MELLON FKA THE BANK OF
11 NEW YORK, AS TRUSTEE FOR THE CERTIFICATEHOLDERS
12 OF CWALT, INC., ALTERNATIVE LOAN TRUST 2006-OC10,
13 MORTGAGE PASS-THROUGH CERTIFICATES, SERIES
14 2006-OC10, and THE BANK OF NEW YORK MELLON FKA
15 THE BANK OF NEW YORK, AS TRUSTEE FOR THE
16 CERTIFICATEHOLDERS OF CWALT, INC., ALTERNATIVE
17 LOAN TRUST 2006-OC11, MORTGAGE PASS-THROUGH
18 CERTIFICATES, SERIES 2006-OC11; NEWREZ, LLC D/B/A
19 SHELLPOINT MORTGAGE SERVICING; and ALL OTHER
20 UNKNOWN PARTIES,

21 Respondents.

Clackamas County Circuit Court Case No. 24CV21417

Appellate Case No. A191649

**EMERGENCY NOTICE OF SUPPLEMENTAL STATUS
UPDATE AND SUPPLEMENTAL MEMORANDUM IN
SUPPORT OF EMERGENCY MOTION FOR STAY OF
ENFORCEMENT PENDING APPEAL
(EMERGENCY MOTION UNDER ORAP 7.35)**

22 Appellant Annika Eriksson, Pro Se, respectfully submits this Emergency Notice to inform the Court of a
23 material change in status occurring after the filing of Appellant's Emergency Motion Under ORAP 7.35 for Stay of
24 Enforcement Pending Appeal, filed August 10, 2026, and submits this Supplemental Memorandum in support thereof.
25 This filing is made on an emergency basis under ORAP 7.35 because the General Judgment on appeal expressly
26 authorizes Respondents to record a reformed sheriff's deed at any time, Respondents' response to the pending
27 Emergency Motion is not due until August 24, 2026, and recording could occur at any moment before then, causing
28 imminent, irreparable, and permanent harm to Appellant's title.

29 **I. STATUS UPDATE**

30 1. In her Declaration in support of the Emergency Motion, Appellant stated that her Motion to Set Aside Void
31 Judgment in Clackamas County Circuit Court Case No. 17CV38591 (Envelope #14448055) was submitted on August
32 5, 2026, and was, at that time, under review by the trial court clerk.

33 2. Appellant now advises the Court that, as of August 17, 2026, the Motion to Set Aside Judgment (Envelope
34 #14448055) has been Accepted by the Clackamas County Circuit Court and is now formally entered on the docket in
35 Case No. 17CV38591.

36 3. This development is material to the pending Emergency Motion because the Motion to Set Aside Judgment
37 directly challenges the validity of the 2019 foreclosure judgment that underlies the reformation judgment presently on
38 appeal in this matter. The Motion's acceptance onto the trial court docket confirms that a live, pending challenge to the
2019 judgment now exists in the trial court.

II. SUPPLEMENTAL MEMORANDUM IN SUPPORT OF EMERGENCY MOTION FOR STAY

The Emergency Motion filed August 10, 2026, remains pending before this Court. Respondents' response is due August 24, 2026. Appellant submits this Supplemental Memorandum to address (1) the material change in status set forth above, and (2) this Court's precedent in *Neal v. Neal*, which is directly controlling and confirms that a stay is warranted here.

A. The *Neal v. Neal* Precedent Is Directly Controlling

This Court's Appellate Commissioner previously granted a stay preserving the status quo pending appeal in materially analogous circumstances. See *Sharon Neal v. Natalia Neal*, No. A169261 (Or. Ct. App. Jan. 17, 2020) (order granting stay). In *Neal*, the Commissioner applied the four factors under ORS 19.350(3)(a) and concluded that a preliminary showing of a reasonable likelihood of prevailing, combined with the potential for irreparable harm from alteration of the status quo, warranted a stay.

The Commissioner's reasoning in *Neal* is directly applicable here:

— **Likelihood of Success:** The Commissioner held that appellant need only make “a preliminary showing of a reasonable likelihood of prevailing.” In *Neal*, the Commissioner observed that appellant had made such a preliminary showing in an earlier order. Here, Appellant’s now-docketed Motion to Set Aside Judgment—which asserts five independent grounds for voidness—constitutes precisely such a preliminary showing.

— **Good Faith:** The Commissioner expressly rejected the argument that a party’s extensive litigation history established bad faith, holding that a mixed litigation record does not, standing alone, show that the appeal lacks merit. The Commissioner observed:

“[T]he court is cognizant of the many cases involving appellant,” but “given the court’s view that there is some likelihood that appellant may prevail on appeal and the fact that, in the trial court’s view, there were issues of fact precluding summary judgment on the merits of nearly all appellant’s claims, the court declines to conclude that this appeal is taken in bad faith.”

— **Support in Law or Fact:** The Commissioner concluded that because “appellant has provided some case law that, in her view, supports her position,” and “given how the courts have viewed such dismissals in the past, the court concludes that there is some support in fact and law for this appeal.”

— **Irreparable Harm:** The Commissioner found that denial of a stay would leave the respondent “free to dispose of the property,” causing irreparable harm should the appellant ultimately prevail, and therefore stayed the judgment specifically to prevent conveyance, transfer, sale, or encumbrance of the property pending appeal.

This is precisely the situation here. The General Judgment on appeal expressly authorizes Respondents to record a reformed sheriff’s deed at any time. As in *Neal*, recording would alter the status quo in a manner not readily undone, particularly where a live challenge to the underlying judgment’s validity remains pending in the trial court.

B. The Status Update Strengthens the Case for a Stay

The formal acceptance of Appellant's Motion to Set Aside Void Judgment in Case No. 17CV38591 is a material development that further supports the factors under ORS 19.350(3):

1. **Likelihood of Success:** The Motion's acceptance onto the trial court docket confirms that the challenges are not frivolous and warrant judicial consideration. A ruling in Appellant's favor in 17CV38591 would necessarily undermine the reformation judgment on appeal, because a void judgment cannot be reformed, confirmed, ratified, or enforced in any manner. *Citizens Savings & Loan Ass'n v. McDonald*, 191 Or. App. 45, 80 P.3d 532 (2003); *Estate of Hutchins v. Fargo*, 188 Or. App. 462, 471, 72 P.3d 638 (2003).

2. **Irreparable Harm:** If the reformed deed is recorded before this Court rules, Appellant's appeal—and her pending ORCP 71 motion—could be rendered effectively moot as to third-party title questions. Recording would create a permanent cloud on Appellant's fee-simple title. A "cloud on title" is created by an instrument which, if valid, would impair the owner's estate, but which can be shown by extrinsic evidence to be void. *Richards v. Mohr*, 73 Or. 57, 60, 143 P. 1102 (1914). A void deed constitutes such a cloud, and for that injury, "the relief which a court of equity can give . . . is much more efficient than could be had in an action at law." *Pubols v. Jacobsen*, 91 Or. 256, 258, 177 P. 629 (1919).

C. The Balance of Equities Favors a Stay

The balance of equities tips sharply in Appellant's favor. Respondents will suffer only a brief procedural delay while this appeal is pending. In contrast, Appellant faces a permanent cloud on her title, the potential loss of her home, and the evisceration of her appellate rights if a stay is denied. The status quo should be maintained. The Oregon Supreme Court has recognized that courts may exercise their power to "preserve the status quo pending the appeal" where the interests involved warrant it. *M & M Woodworking Co. v. State Tax Comm'n*, 217 Or. 161, 314 P.2d 272 (1959).

III. MOTION FOR INTERIM RELIEF

Appellant advises the Court that, as of the date of this filing, no interim or temporary order addressing the Emergency Motion has yet been entered. Respondents' response is not due until August 24, 2026, and the General Judgment on appeal expressly authorizes Respondents to record a reformed sheriff's deed at any time.

Because recording could occur at any moment during the pendency of the response period, and because a live, docketed challenge to the validity of the underlying 2019 judgment now exists in Case No. 17CV38591, Appellant respectfully requests that the Court, pursuant to ORS 19.350(5) and ORAP 7.35, issue an interim order—pending resolution of the Emergency Motion—(1) staying enforcement of the General Judgment entered August 6, 2026, in Case No. 24CV21417; and (2) enjoining Respondents, their agents, and attorneys from recording or causing to be recorded any reformed, amended, or corrected sheriff's deed or judgment affecting the subject property during the pendency of this appeal or until further order of this Court.

In *Neal*, the Appellate Commissioner initially entered a temporary injunction pending the full stay motion's resolution, and such interim relief is particularly warranted here because Respondents' response is not due until August 24, 2026, and recording could occur at any moment before then.

IV. REQUEST FOR RELIEF

For the foregoing reasons, Appellant respectfully requests that this Court:

1. Grant this Emergency Motion pursuant to ORAP 7.35 and ORS 19.350(5).
2. Stay all enforcement of the General Judgment entered on August 6, 2026, in Clackamas County Circuit Court Case No. 24CV21417, pending resolution of this appeal.
3. Enjoin Respondents, their agents, and attorneys from recording or causing to be recorded any reformed, amended, or corrected sheriff's deed or judgment during the pendency of this appeal.
4. Grant such other and further relief as the Court deems just and equitable.

DATED: August 18, 2026.

Respectfully submitted,

/s/ Annika Eriksson

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CERTIFICATE OF SERVICE

I certify that on August 18, 2026, I served a true and correct copy of the foregoing **EMERGENCY NOTICE OF SUPPLEMENTAL STATUS UPDATE AND SUPPLEMENTAL MEMORANDUM IN SUPPORT OF EMERGENCY MOTION FOR STAY OF ENFORCEMENT PENDING APPEAL** electronically through the Oregon Appellate eFile system on counsel of record: Gregor A. Hensrude and Chancellor K. Eagle, Klinedinst PC.

DATED: August 18, 2026.

/s/ Annika Eriksson

Annika Eriksson, Appellant Pro Se